

1. Line 37 through 47:

37 (B) acting in the capacity of a private investigator.
 38 [(iii)](iv) "Protective order" means a protective order, stalking injunction, or
 39 restraining order issued by a court of any jurisdiction.
 39a ~~§→~~ (v) **"Rental company" means the same as that term is defined in Section**
 39b **76-6-410.5.**
 40 [{ (v) }](vi) ←§ (A) "Tangible personal property" means a physical asset or object
 40a that can be
 41 seen, touched, and moved.
 42 (B) "Tangible personal property" does not include a motor vehicle.
 43 ~~§→~~ [{ (vi) }](vii) ←§ "Tracking application" means a software program that can
 43a be used to track or
 44 identify the location or movement of an individual.
 45 [(iv) ~~§→~~ (vii)](viii) ←§ (A) "Tracking device" means a device used for the
 45a primary purpose of
 46 revealing the device's location or movement by the transmission or recording
 47 of an electronic signal.

2. Line 49 through 53:

49 vehicle by the motor vehicle manufacturer or a commercial motor vehicle
 50 dealer that transmits electronic signals for the purpose of data collection, if the
 51 data collection is anonymized.
 52 ~~§→~~ [{ (viii) }](ix) ←§ "Vulnerable adult" means the same as that term is defined
 52a in Section 76-5-111.
 53 (b) Terms defined in Sections 76-1-101.5, 76-12-101, and 76-12-301 apply to this

3. Line 54 through 62:

54 section.
 55 (2) [~~Except as provided in Subsection (4), an~~] An actor commits unlawful [~~installation~~] use
 56 of a tracking device or tracking application if [~~the actor knowingly~~]:
 57 (a) (i) [~~the actor~~ ~~§→~~ [{ knowingly }] intentionally ←~~§~~] installs or places, or directs
 57a another to install or place, a

58 tracking device on or in a motor vehicle owned or leased by another [person,]
59 $\hat{H} \rightarrow$ [{ individual }] person $\leftarrow \hat{H}$; and
60 (ii) the actor:
61 (A) [-without the] did not receive permission [of] from the owner or lessee of the
62 motor vehicle[-] to install or place the tracking device; or

4. *Line 64 through 69:*

64 owner's or lessee's movement after the owner or lessee revoked the owner's or
65 lessee's permission for the actor to use the tracking device and the actor knew
66 that the owner or lessee had revoked the owner's or lessee's permission;
67 (b) (i) the actor $\hat{H} \rightarrow$ [{ knowingly }] intentionally $\leftarrow \hat{H}$ places, or directs another to
67a place, a tracking device:
68 (A) on an individual's person;
69 (B) on or in an individual's tangible personal property; or

5. *Line 75 through 80:*

75 individual's movement after the individual revoked the individual's permission
76 for the actor to use the tracking device and the actor knew that the individual
77 had revoked the individual's permission; or
78 (c) (i) the actor $\hat{H} \rightarrow$ [{ knowingly }] intentionally $\leftarrow \hat{H}$ uses a tracking application
78a installed or otherwise used on
79 an electronic or other device in the possession or control of an individual to track
80 the individual's movement; and

6. *Line 113 through 119:*

113 movement; and
114 (ii) who has received permission from any other parent or legal guardian of the minor
115 to install or place the tracking device or use the tracking application;
115a $\hat{H} \rightarrow$ (c) an individual who was a parent or legal guardian of a minor if:
115b (i) the individual installed or placed a tracking device as described in Subsection
115c (5)(b);
115d (ii) the minor described in Subsection (5)(b) is now 18 years old or older; and
115e (iii) the individual has not been expressly informed by the former minor that the
115f actor does not have permission to continue to use the tracking device or tracking
115g application;
116 [{ (e) }] (d) $\leftarrow \hat{H}$ a caregiver of a vulnerable adult:

117 (i) who installs or places a tracking device on the vulnerable adult's person, on or in
118 the vulnerable adult's tangible personal property, on or in tangible personal
119 property under the physical control of the vulnerable adult, or on or in a motor

7. *Line 120 through 128:*

120 vehicle owned or leased by the vulnerable adult; or
121 (ii) who uses a tracking application installed or otherwise used on an electronic or
122 other device in the possession or control of the vulnerable adult to track the
123 vulnerable adult's movement; $\hat{H} \rightarrow [\{ \text{-and} \}]$
124 [$\{ \text{(d)} \}] \text{(e)} \leftarrow \hat{H}$ an individual who installs, places, or uses a tracking application at the
124a direction of a
125 court order $\hat{H} \rightarrow [\{ \cdot \}]$; **or**
125a **(f) a peace officer who obtains information in accordance with Section 53-10-104.5. $\leftarrow \hat{H}$**
125ai **$\hat{S} \rightarrow$ (6) Subsections (2)(a) and (c) do not apply to:**
125aii **(a) a rental company if the rental company is installing, placing, or using a tracking**
125aiii **device or tracking application to track a motor vehicle owned by the rental company**
125aiv **provided to a renter under the terms of a rental agreement; or**
125av **(b) any person who:**
125avi **(i) owns a motor vehicle;**
125avii **(ii) installs, places, or uses a tracking device or tracking application to track the**
125aviii **motor vehicle; and**
125aix **(iii) allows another person to use the motor vehicle, not including under a lease**
125ax **agreement.**
126 **(6)(7) $\leftarrow \hat{S}$ (a) Before installing or placing a tracking device on a motor vehicle under**
126a **Subsection**
127 **(4), a private investigator shall request confirmation from a state entity with access to**
128 **updated protective order records, that:**

8. *Line 141 through 146:*

141 ~~[(9)]~~(d) On request from the Bureau of Criminal Identification, a private investigator
142 who installs or places a tracking device on a motor vehicle shall disclose the purpose
143 of the tracking device to the Bureau of Criminal Identification.
144 ~~[(10) $\hat{S} \rightarrow$ (7)]~~ **(8) $\leftarrow \hat{S}$ [(a) A person]An individual, or the heirs of a deceased [person]**
144a **individual, who**
145 **has been injured by a violation of [this section]Subsection (2) may bring an action**
146 **against the actor who committed the violation.**

9. Line 153 through 156a:

153 [(d) A finding that the defendant is in violation of this section entitles the plaintiff to an
154 award of reasonable attorney fees.]
155 [(e) Exemplary damages may be awarded when the violation is found to be malicious.]
156 $\hat{\$} \rightarrow [\{ \textcolor{blue}{(8)} \}] \textcolor{red}{(9)} \leftarrow \hat{\$}$ If in the action described in Subsection $\hat{\$} \rightarrow [\{ \textcolor{blue}{(7)} \}] \textcolor{red}{(8)} \leftarrow \hat{\$}$ the
156a court finds by a preponderance of the

10. Line 157 through 174:

157 evidence that the defendant has committed a violation of Subsection (2), the court shall:
158 (a) enjoin the defendant from a continued violation; and
159 (b) if the plaintiff establishes that the violation has injured the plaintiff, award to the
160 plaintiff, subject to Subsection $\hat{\$} \rightarrow [\{ \textcolor{blue}{(10)(b)} \}] \textcolor{red}{(11)(b)} \leftarrow \hat{\$}$:
161 (i) reasonable attorney fees; and
162 (ii) (A) compensatory damages; or
163 (B) statutory damages of \$50 a day for each day the defendant violates a provision
164 of this section, or \$5,000, whichever is greater.
165 $\hat{\$} \rightarrow [\{ \textcolor{blue}{(9)} \}] \textcolor{red}{(10)} \leftarrow \hat{\$}$ (a) A plaintiff may elect at any time before final judgment is
165a entered by the court to
166 recover statutory damages under Subsection $\hat{\$} \rightarrow [\{ \textcolor{blue}{(8)(b)(ii)(B)} \}] \textcolor{red}{(9)(b)(ii)(B)} \leftarrow \hat{\$}$
166a instead of compensatory
167 damages.
168 (b) In addition to the damages described in Subsection $\hat{\$} \rightarrow [\{ \textcolor{blue}{(8)} \}] \textcolor{red}{(9)} \leftarrow \hat{\$}$, a court
168a may award punitive
169 damages in accordance with Section 78B-8-201.
170 $\hat{\$} \rightarrow [\{ \textcolor{blue}{(10)} \}] \textcolor{red}{(11)} \leftarrow \hat{\$}$ (a) If an actor at trial is found not guilty of violating this
170a section, the not guilty
171 verdict does not preclude a court from finding that the actor is liable under
172 Subsection $\hat{\$} \rightarrow [\{ \textcolor{blue}{(8)} \}] \textcolor{red}{(9)} \leftarrow \hat{\$}$.
173 (b) If restitution was ordered in the criminal action, the amount ordered shall be
174 deducted from any damages awarded under Subsection $\hat{\$} \rightarrow [\{ \textcolor{blue}{(8)(b)(ii)} \}] \textcolor{red}{(9)(b)(ii)} \leftarrow \hat{\$}$.